

either file his replication, or set down the cause to be heard on bill and answer. within the times following, viz. :

Amendment,
but no answer,
plaintiff must
reply after eight
and within
fourteen days.

Within four-
teen days after
further time
to answer
refused.

If amendments
answered. Re-
plication with-
in fourteen
days after
answer.

1. Where the plaintiff amends his bill, and no answer is put in thereto, and no warrant for further time to answer the same is served within eight days after service of the subpoena to answer the amended bill, the plaintiff is, after the expiration of such eight days, but within fourteen days from the time of such service, either to file his replication, or set down the cause to be heard upon bill and answer. Otherwise any defendant may move to dismiss for want of prosecution.
2. Where the plaintiff amends his bill after answer, and a defendant, within eight days after the service of the subpoena to answer the amended bill, serves a warrant for further time to answer the amendments, but the Master refuses to grant such further time, the plaintiff is, within fourteen days after such refusal, either to file his replication, or to set down the cause to be heard on bill and answer. Otherwise any defendant may move to dismiss the bill for want of prosecution.
3. If a defendant puts in an answer to amendments, the plaintiff must, within fourteen days after the filing of such answer, either file his replication, or set down the cause to be heard on bill and answer, unless in the meantime he obtains from the Court a special order for leave to amend the bill. Otherwise any defendant may move to dismiss the bill for want of prosecution.

The above introductory clause of the 46th Order is taken from Article 37 of the English Order 16 of 1845.

Compared with English Orders. Article 1 of the above Order 46 is from 38th Article of the English 16th Order. Article 2 is from Article 40 of the said 16th Order, and Article 3, from Article 41 of the 16th Order ; all with a few verbal alterations, necessary to adapt them to our practice, of never compelling an answer. The authorities on this subject will be found under the Orders as to Dismissal of Bill.

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